

HOUSE No. 4463

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 11, 2025.

The committee on Higher Education, to whom was referred the petition (accompanied by bill, House, No. 1426) of Manny Cruz, Lindsay N. Sabadosa and others for legislation to address the deferred maintenance needs of public institutions of higher education and for the creation of a green and healthy public college and university building planning commission (including members of the General Court), reports recommending that the accompanying bill (House, No. 4463) ought to pass.

For the committee,

DAVID M. ROGERS.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide green and healthy public colleges and universities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 15A of the General Laws is hereby amended by inserting,
2 after section 47, the following section:-

3 Section 48. Green and Healthy Public College and University Building Planning
4 Commission

5 (a) There shall be a Green and Healthy Public College and University Building Planning
6 Commission, which shall consist of the following members: the commissioner of higher
7 education, who shall serve as chair, or a designee; the commissioner of public health, who shall
8 serve as vice chair, or a designee; the secretary of energy and environmental affairs, who shall
9 serve as vice chair, or a designee; the speaker of the house of representatives, or a designee; the
10 president of the senate, or a designee; the minority leader of the house of representatives, or a
11 designee; the minority leader of the senate, or a designee; the chairs of the joint committee on
12 ways and means, or their designees; the chairs of the joint committee on higher education, or
13 their designees; the president of the university of Massachusetts, or a designee; the executive

14 director of the Massachusetts Association of Community Colleges, or a designee; the executive
15 officer of the Massachusetts State University Council of Presidents, or a designee; 4
16 representatives of the Massachusetts Teachers Association, 1 of whom shall be employed by the
17 university of Massachusetts, 1 of whom shall be employed by a state university, and 1 of whom
18 shall be employed by a community college; a representative of the American Federation of
19 Teachers, Massachusetts; a representative of the American Institute of Architects-Massachusetts;
20 a representative of the Massachusetts State Building Trades Council; a representative of the
21 Massachusetts Coalition for Occupational Safety and Health; and a representative of the
22 Massachusetts Department of Higher Education's Student Advisory Council established in
23 section 4 of chapter 15A.

24 (b) The commission shall assess and make recommendations for public higher education
25 buildings relative to energy efficiency, spatial adequacy, life safety, accessibility, indoor
26 environmental quality and public health. The commission shall be established not less than every
27 10 years to monitor the implementation of its recommendations, and to conduct a new
28 assessment if determined to be necessary by the commission.

29 (c) The commission shall determine the means of conducting its work, which shall
30 include, but not be limited to:

31 (1) assessing the extent to which public higher education buildings in the commonwealth
32 provide students a healthy environment that is conducive to learning while efficiently using
33 energy and resources and limiting exposure to toxic building materials, referred to in this section
34 as "green and healthy public higher education buildings." Factors to be considered shall include,
35 but not be limited to: (i) protection against infectious disease; (ii) sufficient ventilation and air

circulation, including adequate outdoor air exchange, filtration and circulation; (iii) healthy indoor air quality, including limits on pollutants, exposure to toxic substances, chemical emissions and vapor intrusion; (iv) adequate availability of clean and safe water; (v) appropriate thermal comfort, humidity and temperature controls; (vi) protections against pests with effective use of integrated pest management; (vii) limits on pollutants, dust, mold and allergens; (viii) appropriate artificial lighting and plentiful natural light; (ix) proper acoustic and noise control; (x) proper maintenance of mechanical systems; (xi) design that promotes physical activity and meets accessibility standards; (xii) opportunities to increase energy efficiency and efficient use of resources including low-flow fixtures; (xiii) opportunities to shift to fossil-free fuels; (xiv) proper access to greenspace; and (xv) opportunities for architectural design to enhance occupant safety. The assessment may rely on existing data or be objectively measured. The assessment shall include a public searchable online dashboard with the findings for all public higher education buildings in the commonwealth; and

(2) developing standards for green and healthy public higher education buildings.

(d) Members of the commission shall not receive compensation for their services but may receive reimbursement for the reasonable expenses incurred in carrying out their responsibilities as members of the commission. The commissioner of higher education shall furnish reasonable staff and other support for the work of the commission.

SECTION 2. Chapter 29 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 2DDDDDD the following section:-

Section 2EEEEEE. Green and Healthy Public College and University Building Fund

There shall be a separate fund, to be administered by the board of higher education, which shall be known as the Green and Healthy Public College and University Building Fund. The fund shall be credited with: (i) appropriations, bond proceeds or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to gifts, grants and donations; and (iii) any interest earned on such funds. Amounts credited to the fund shall be used, without further appropriation, to fund and implement the recommendations of the Green and Healthy Public College and University Building Planning Commission, established in section 48 of chapter 15A, for the renovation and rehabilitation of existing buildings and new building construction to meet the recommended green and healthy public higher education buildings standards.

SECTION 3. The Green and Healthy Public College and University Building Planning Commission, as established in section 48 of chapter 15A of the General Laws, shall create and recommend a plan for all existing and new public higher education buildings to equitably meet, by December 31, 2037, the standards for green and healthy public higher education buildings developed pursuant to paragraph (c) of said section 48 of said chapter 15A. The commission shall issue recommendations, including an analysis that summarizes the findings of its assessment of public higher education buildings in the commonwealth, for implementing green and healthy public higher education buildings standards for cost-effective renovation and rehabilitation of existing buildings and for new building construction, along with a plan to ensure all such buildings meet these standards by December 31, 2037.

The recommendations shall prioritize addressing buildings with the greatest needs first, based in part on recommendations made to the commission by the department of higher education and the University of Massachusetts. The recommendations shall also consider the

80 environmental conditions of buildings, surrounding communities and resources, site challenges
81 and buildings serving the highest percentage of low income or historically underserved students.
82 The recommendations shall estimate the cost of bringing all buildings into compliance with the
83 standards by December 31, 2037, including the ongoing cost of maintenance and repair, and
84 recommend a plan to fund these costs, and shall also compare those costs with long-term savings
85 in health and medical costs, energy costs, maintenance, life cycle assessment and other savings
86 and the growth in economic activity of bringing buildings to the standards, including increased
87 jobs and job training.

88 The first plan of the commission shall be published and submitted to the clerks of the
89 senate and house of representatives, the joint committee on ways and means and the joint
90 committee on higher education not later than December 31, 2028. Prior to completing its
91 assessment and issuing its recommendations, the commission shall conduct public hearings at
92 every commonwealth institution of public higher education and shall consult with employee
93 organizations, as defined in chapter 150E, representing employees at each institution of public
94 higher education.